

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 21-022

**Amendments to Title 10, Chapter 2, Section 10-202 of the Chickasaw Nation Code
(Development Budget)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Section 10-202 of the Chickasaw Nation Code provides for a Development Budget to be submitted to the Legislature for approval, and

WHEREAS, the Chickasaw Tribal Legislature desires to simplify the capital improvements process for itself and the Executive Department.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Section 10-202, all other parts of said Section to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 10-202

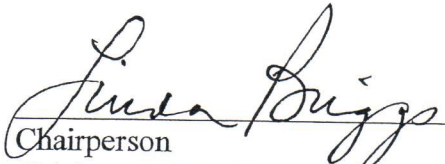
COMPTROLLER BUDGET DUTIES.

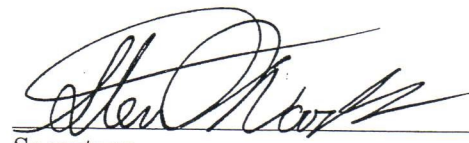
B. Projects intended to develop tribal real property shall be contained in a Development Budget, devised by the Governor and submitted to the Legislature ~~annually~~ apart and separate from the Consolidated Governmental Budget. The Governor may submit modifications or amendments ~~updates~~ as special need or circumstances dictate.

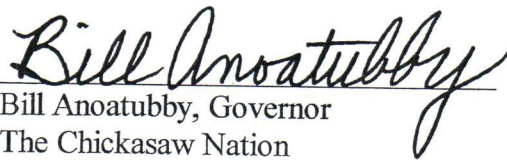
2. When the Legislature shall have approved the Development Budget, the requirements of Section 18-106.B shall be deemed to have been met, and authorization shall be granted for the performance of activities and authorization for expending ~~extending~~ funds to complete the projects identified in the Development Budget. Completion of a project may not be limited to a single fiscal year; approval of a project includes approval until such time as the project is completed.

5. As a report indicates the completion of a project, the project shall be removed from the Development Budget. When a new project is proposed, the Governor shall submit a budget revision to the Legislature for its approval. Once approved, the new project will be added to the Development Budget and, until the project's completion, its progress shall be reported monthly by the Governor to the Legislature."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2004, by a vote of 11 ayes, 1 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 21 2004

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Explanation: This resolution amends Section 10-202 to further define the Development Budget as a one-time, living budget, subject to continual change to keep pace with the changing needs of tribal government. It will provide updates to the Legislature on all ongoing projects relating to real property projects and allow for closer real-time monitoring and evaluation of such projects.

Requested By: Governor Bill Anoatubby

Presented By: D. Scott Colbert, Chairman
Finance Committee